

## EC069344 EC069344

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-07

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Case Number: EC069344 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Dismiss

Hearing Date: 8/7/26

CASE NO./NAME: EC069344 / Kline v. Dibacco

Moving Party: Defendant Michael Dibacco

Responding Party: Plaintiff Michael Lawrence

Kline

Notice: Sufficient

Ruling: DENY

### NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at [email protected] or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

## BACKGROUND

This is a breach of contract action. Plaintiff

Michael Lawrence Kline (Plaintiff) and defendant Michael Dibacco (Defendant) were partners in a California Limited Liability Company that operated as a restaurant and bar known as Michaels on Riverside and The Red Door in Toluca Lake, California. On September 7, 2018, Plaintiff filed the initial Complaint against Defendant. On May 12, 2026, Plaintiff filed the Fourth Amended Complaint for breach of fiduciary duty, fraud, and violation of Penal Code § 496 alleging that Defendant had misrepresented the financial status of the business, misappropriated funds, and maintained fraudulent records. (See Fourth Amended Complaint.)

On October 29, 2020, Defendant filed for Chapter 7 Bankruptcy in United States Bankruptcy Court. On November 10, 2020, Defendant filed a notice of bankruptcy stay with this Court. On February 4, 2021, Plaintiff filed an adversarial action against Defendant with the Bankruptcy Court. In September of 2024, the adversarial Bankruptcy proceedings ended, concluding all bankruptcy proceedings.

On January 15, 2025, this Court ordered the stay on the bankruptcy proceedings lifted in light of notice of Bankruptcy Judgment.

On July 9, 2026, Defendant filed the instant motion to dismiss, pro per, on the grounds that the statutory five-year period has lapsed. On July 27, 2026, Plaintiff filed an opposition. On July 31, 2026, Defendant filed a reply.

## REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of Exhibits: (A) The docket in this action, Kline v. DiBacco, Los Angeles Superior Court Case No. EC069344; (B) The docket in United States Bankruptcy Court Case No.: 1:20-bk-11952-VK In re: Michael A. Di Bacco; (C) The docket in United States Bankruptcy Court Adv. No. 1:21-ap-01010-GM ("Adversarial Proceedings"); (D) Defendant Michael Di Bacco's Notice of Bankruptcy Stay dated November 10, 2020;

(E) December 4, 2020 Minute Order of this Court; (F) March 4, 2021 Minute Order of this Court; (G) February 17, 2022 Order of the Court in United States Bankruptcy Case No. 1:20-bk11952-VK; (H) July 11, 2022 Order of this Court granting Plaintiff's Motion for Preliminary Injunction; (I) September 6, 2022 modified Order for Preliminary Injunction; (J) March 4, 2024 Order of Contempt against Defendant; (K) January 13, 2025 Judgment in the Adversarial Proceedings in the United States Bankruptcy Court, Central District of California Case No. 1:21-AP-01010; (L) January 13, 2025 Memorandum of Opinion in the Adversarial Proceedings in the United States Bankruptcy Court, Central District of California Case No. 1:21-AP-01010; (M) January 15, 2025 Minute Order in this action; (N) May 8, 2026 Order granting Plaintiff's Motion for Leave to File a Fourth Amended Complaint; (O) Plaintiff's Fourth Amended Complaint filed on or about May 12, 2026. The request is granted. (Evid. Code, § 452(d).)

## LEGAL STANDARD

Pursuant to the Code of Civil Procedure, an action shall be brought to trial within five years after the action is commenced against the defendant. (Code Civ. Proc., § 583.310.) This excludes the time during which any of the following conditions existed: (a) the jurisdiction of the court to try the action was suspended; (b) prosecution or trial of the action was stayed or enjoined; (c) bringing the action to trial, for any other reason, was impossible, impracticable, or futile. (Code Civ. Proc., § 583.340(a-c).)

An action shall be dismissed by the court on its own motion or on motion of the defendant...if the action is not brought to trial within 5 years, excluding any tolling period. (Code Civ. Proc., § 583.360(a).)

## DISCUSSION

Defendant brings the instant motion on the grounds that the five-year statutory period has expired and Plaintiff has had ample opportunity to bring this action to trial. (Mot., pp. 5-6.) Defendant argues that it has been 7 years, 11 months, and 10 days since the initial Complaint was filed on September 7, 2018. (Mot., p. 4.) Defendant alleges that the bankruptcy stay, commenced on November 10, 2020, extended this action by 1 year, 3 months, and 10 days, and the COVID related extension afforded an additional 6 months. (Ibid.) Excluding these extensions,

Defendant argues the time lapsed is 6 years, 2 months, and 21 days. (Ibid.)

In opposition, Plaintiff argues that the stay was not lifted on February 17, 2022, as Defendant claims. (Opp., p. 5.) Plaintiff argues that a final determination in the bankruptcy proceedings could not be made at that time as the bankruptcy litigation was ongoing. (Opp., p. 5.) Plaintiff argues that the Bankruptcy Act provides that any legal proceeding is automatically stayed upon the filing of a petition of bankruptcy until adjudication or dismissal of the petition. (Opp., p. 4.) Alternatively, Plaintiff argues that it was impossible, impracticable, or futile to bring this action to trial until after bankruptcy proceedings were fully adjudicated. (Opp., p. 8.)

In reply, Defendant argues that partial stay is not sufficient to halt proceedings completely, and that proceedings were only halted completely until February 17, 2022. (Reply, p. 2.) Moreover, Defendant argues that Plaintiff has not established that pursuing this action after partial relief from stay would have been impossible or impracticable. (Reply, p. 3.)

Here, the action was stayed on October 29, 2020, pursuant to automatic Bankruptcy stay as described by this Court in the December 4, 2020, Minute Order (Hamrick Decl., Exh. F.) Bankruptcy proceedings were ongoing, on behalf of both parties, until January 15, 2025, when this Court explicitly lifted the stay on proceedings due to receiving final judgment from those Bankruptcy proceedings. (Hamrick Decl., Exh. M.) Although the bankruptcy court granted partial relief from stay on February 17, 2022, the Bankruptcy court only did so regarding non-monetary injunctive relief. (Hamrick Decl., Exh. G.) This action is based on monetary disputes, and bringing the action for trial on non-monetary issues would have been impossible, impracticable, or futile consistent with section 583.340(c). For purposes of section 583.340, proceeding with trial may be impracticable or futile when it would be difficult to proceed with trial before other related litigation is fully resolved. (*Reserve Ins. Co. v. Universal Underwriters Ins. Co.*, 51 Cal.App.3d 57, 61–62 (1975).) Moreover, [the] trial court must determine what is impossible, impracticable, or futile “in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves.” (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 730.)

This action was brought September 7, 2018, stayed on October 29, 2020, and resumed on January 15, 2025. The action was litigated for 2 years, 1 month, and 22 days prior to the stay, and the duration between the stay and current trial date is 1 year, 7 months, and 2 days. Thus, this action has been actively litigated for 3 years, 8 months, and 24 days total. This is well within the five-year statutory window.

Accordingly, the motion is DENIED.

CONCLUSION  
AND ORDER

Defendant's Motion for Dismissal is DENIED.

MOVING PARTY is to give notice.